

7	30-2023-01354850 Butler vs. American Vision Windows, Inc.	The tentative ruling is to continue the hearing on Plaintiffs Adolfo Rojas Sr. and Jesse Bryan Butler's (collectively, "Plaintiffs") Motion for Final Approval of Class Action and PAGA Settlement to August 31, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be re-read) at least 12 days before the next hearing date. As the court stated in its previous Minute Order, an invoice from the Administrator is required to support the \$12,556.00 Administrator fee request. The court cannot approve the administration cost award absent documentary support itemizing the underlying costs which demonstrates that the request is reasonable. Further, as Plaintiffs' counsel states: "Plaintiffs shall file a declaration of the Administrator regarding settlement distribution at least one week prior to the Settlement Compliance hearing." (Supp. Manus Dec. ¶ 14.) The hearing should be referred to as the Final Report Hearing, and the administrator's declaration should be provided to the court 16 days before the Final Report Hearing. Plaintiff is ordered to give notice of the ruling to the LWDA, and to Defendant.
8	30-2024-01376392 Phu vs. Microvention, Inc.	Plaintiff Loan Phu's ("Plaintiff") Motion for Final Approval of Class Action and PAGA Settlement is GRANTED IN PART. An enhancement award of \$5,000 is sufficient and proper for a class and settlement of this size, based on plaintiff's contribution to the case. The court concludes that the \$1,180,000.00 class action and PAGA settlement is fair, adequate and reasonable, and approves the following specific awards: • \$354,000.00 to plaintiff's counsel for plaintiff's attorneys' fees, as requested; • \$10,355.02 to plaintiff's counsel for plaintiff's litigation costs, as requested;

		• \$5,000.00 to Plaintiff Loan Phu as enhancement award, reduced from the \$10,000.00 requested; • \$11,990.00 to Apex Class Action, LLC, the settlement administrator, as requested; and • \$75,000.00 to the LWDA for its share of PAGA penalties, as requested. The total amount that will be payable to all class members [and aggrieved employees], if they are paid the amount to which they are entitled pursuant to the judgment, is \$723,654.98. The Final Accounting hearing is set for August 23, 2027 at 1:30 p.m. in Department CX103. At least sixteen (16) calendar days before the hearing, Class Counsel and the Settlement Administrator shall submit a summary accounting of the distribution of the settlement funds to Class Members and Aggrieved Employees, identifying the distributions made pursuant to this Order and Judgment, and identifying the number and value of any uncashed checks, and the status of any unresolved issues. Within five (5) days of this ruling, Plaintiff is ordered to provide the court with a revised Proposed Final Order and Judgment reflecting this ruling. Plaintiff is ordered to give notice of the ruling to the LWDA and Defendant.
9	30-2024-01400837 Hernandez vs. MMLW, LLC	Plaintiff Rigoberto Hernandez’s (“Plaintiff”) Motion for Final Approval of Class Action and PAGA Settlement is GRANTED IN PART ON THE CONDITION THAT within five (5) days of this ruling, an amended [Proposed] Order and Judgment is provided to the court in accordance with this ruling. The [Proposed] Order and Judgment must provide how the parties will comply with CRC Rule 3.771(b), which states: “Notice of the judgment must be given to the class in the manner specified by the court.” The notice may be included with the checks that are mailed to the class members or posted on the administrator’s website. The court finds that an attorneys’ fee award totaling \$99,375.00 or 30% of the Gross Settlement Amount, is fair, adequate and reasonable for the class and settlement of this size, contingent nature of representation and the results achieved.